

Disposition

The Motion to Set Aside is granted. The case is dismissed without prejudice. Plaintiff shall prepare the Order.

5. 9:00 AM CASE NUMBER: MSL07-00470

CASE NAME: LHR, INC. VS. WIESLAW ZIEBA

*HEARING ON MOTION IN RE: TO AMEND JUDGMENT AND RENEWAL OF JUDGMENT TO CHANGE PLAINTIFF'S NAME

FILED BY: PHARUS FUNDING LLC, AS SUCCESSOR IN INTEREST TO LHR, INC.

TENTATIVE RULING:

PLEASE NOTE: If this tentative ruling is timely contested (by 4:00 p.m. on Monday, February 23, 2026), the hearing will take place on Tuesday, March 3, 2026, at 9:00 a.m.

Background

Plaintiff filed this Motion to amend the name of the original Plaintiff on the Judgment, LHR, Inc., to Daz Funding, as a successor-in-interest, ultimately, to LHR.

The Motion is unopposed.

Proof of service by mail was filed, indicating mail service on Defendant at an address where he had been personally served in the matter on 9/27/12. No subsequent changes of address have been filed with the court by Defendant.

Analysis

Case law suggests that a trial court has discretion to amend the name of a Defendant, under Section 187 of the Code of Civil Procedure, when the doing so would simply identify the Defendant by the name of its alter ego. See *Greenspan v. LADT, LLC* (2010) 191 Cal.App.4, 486, 508; and *Miski v. D 'Arco* (2011) 197 Cal.App.4th 1065, 1074. The reasoning in these cases is that there was no change in the real defendant in the matter, and that the defendant – even under its alter ego - “[I]n fact had control of the previous litigation and thus were virtually represented in the lawsuit.” See *Greenspan v. LADT, LLC, supra*, 191 Cal.App.4 at 508. Moreover, in these matters, “The greatest liberality is to be encouraged in the allowance of such amendments in order to see that justice is done.” *Id.*

To begin with, in the instant matter, this court finds proper service of Defendant.

Next, though it is Plaintiff that seeks a change of its own name on the Judgment, as a successor in interest, rather than that of Defendant, the court sees no difference. There is no prejudice to the Defendant. Defendant’s ability to defend themselves is in no way affected.

Disposition

The Motion granted. Plaintiff shall prepare the Order and submit an amended judgment within 10 days.

6. 9:00 AM CASE NUMBER: MSL12-04359

CASE NAME: CAVALRY VS CARDENAS

*HEARING ON MOTION IN RE: MOTION TO VACATE DEFAULT JUDGMENT FILED BY PLN ON 11/20/25

FILED BY: CAVALRY SPV I, LLC

TENTATIVE RULING:

PLEASE NOTE: If this tentative ruling is timely contested (by 4:00 p.m. on Monday, February 23, 2026), the hearing will take place on Tuesday, March 3, 2026, at 9:00 a.m.

Background

Plaintiff filed a Motion to Set Aside Default Judgment, and dismiss the action with prejudice, under Section 473 of the CCP, on the basis that the parties have agreed to a mutual release.

Disposition

Motion to Set Aside is granted. The case is dismissed with prejudice. Plaintiff shall prepare the Order.

7. 9:00 AM CASE NUMBER: N26-0060

CASE NAME: KUANGSUN TUNG VS. CITY OF CONCORD

HEARING IN RE: PETITION FOR ORDER RELIEVING FROM GOV CLAIM

FILED BY: TUNG, KUANGSUN